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|   |                                                                                                            | <p>However, at this stage the court will allow leave to amend consistent with the liberal policy in favor of amendment.</p> <p>Plaintiff is ORDERED to file and serve the amended complaint within 5 days.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 3 | <p><b>Oh vs. Chen</b><br/> <b>30-2025-</b><br/> <b>01521231-CU-</b><br/> <b>CL-CJC</b></p>                 | <p><b>Motion to Dissolve and Vacate Right to Attach Order and Writ of Attachment</b></p> <p>Defendant, Binbing Chen's motion to dissolve and vacate right to attach order and writ of attachment is OFF CALENDAR.</p> <p>Defendant is currently defaulted and cannot take affirmative steps in the litigation until default has been set aside. (See <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385.)</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 4 | <p><b>Lopez vs. Kia America, Inc.</b><br/> <b>30-2025-</b><br/> <b>01456189-CU-</b><br/> <b>BC-CJC</b></p> | <p><b>Motion for Judgment on the Pleadings</b></p> <p>Defendant Kia America, Inc.'s (Kia) Motion for Judgment on the Pleadings is GRANTED with 10 days leave to amend.</p> <p><u>Second cause of action for implied warranty</u></p> <p>Kia moves for judgment on the pleadings as to Plaintiff's second cause of action for breach of the implied warranty of merchantability on the ground it is time-barred. "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Co.</i> (2020) 46 Cal.App.5th 493, 495 [citation omitted].)</p> <p>The Song-Beverly Act provides the duration of the implied warranty of merchantability may extend to a period of not more than one year after purchase when accompanied by an express warranty of future performance spanning one year or longer. (Civ. Code, § 1791.1, subd. (c).)</p> <p>A claim for breach of implied warranty is not barred by the consumer's failure to report the defect within one year, as "[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305.) "There is nothing that suggests a requirement that the purchaser discover and report to the</p> |

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|          |                                                                                                                                                                                                              | <p>seller a latent defect within that time period.” (Id. at p. 1310.)</p> <p>Plaintiff alleges he purchased the vehicle on 5/18/19 and defects were present at the time of the sale. (Compl. ¶¶ 8, 10, 43.) Plaintiff further alleges he first presented the vehicle for repairs in March 2022. (Compl. ¶ 11.)</p> <p>To the extent Plaintiff alleges a latent defect existed within the one-year period, Plaintiff’s claim is not barred based on a failure to report the defect within one year. At the latest, however, Plaintiff would have been required to file this action four years after the one-year implied warranty period expired on 5/18/20, or 5/18/24.</p> <p>As Plaintiff filed this action more than four years later on 1/24/25, his claim is time-barred.</p> <p>If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean copy of the amended complaint.</p> <p>Kia to give notice.</p> |
| <b>5</b> | <b>Matthew P. Wade, in his capacity as TRUSTEE of the ML Wade Family Trust under the provisions of a trust agreement dated September 12, 2013 vs. Scott English Plumbing Inc. 30-2024-01448700-CU-BC-CJC</b> | <p><b>Motion for Leave to Intervene</b></p> <p>Non-party AZGuard Insurance Company’s unopposed Motion for Leave to Intervene is DENIED.</p> <p>AZGuard failed to timely serve notice of its motion. (Code Civ. Proc., § 1005, subd. (b).)</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>6</b> | <b>Delta Group, Inc. vs. Jobran 30-2026-01550459-CU-NP-CJC</b>                                                                                                                                               | <p><b>Order to Show Cause re: Preliminary Injunction</b></p> <p>Off calendar at moving party’s request.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>7</b> | <b>To vs. Tu</b>                                                                                                                                                                                             | <b>Demurrer and Motion to Strike to Amended Cross-Complaint</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |